clear that other political remedies were not off the table. This included an amendment to the Constitution to clarify the position and effectively nullify the high court's decision. However, the question of an amendment would only arise, he said, 'after a definite decision had been reached' by the Supreme Court.[16]

The appeal arose for hearing at the Supreme Court in March 1951. At the time, the court had a numerical strength of eight judges including the chief justice. Chief Justice H.J. Kania and six of his colleagues – four of whom would themselves later become chief justice – were on the panel that decided the case. As the hearing progressed, the central government sensed that an adverse decision from the Supreme Court was the most likely outcome. On 17 March, the law ministry sent a note to the cabinet proposing amendments to Article 15 of the Constitution intended to protect measures such as the Communal G.O.[17]

The central government's expectations became a reality. At the end of the hearing, the court indicated to the advocate general that, in a judgement to be delivered in due course, it would be dismissing the appeal and upholding the Madras High Court's decision striking down the Communal G.O.[18] This suggested that the judges were clear about their decision, with little or no disagreement among them. The judgement that followed shortly thereafter was succinct and unanimous, with Justice S.R. Das writing on behalf of the Supreme Court.

The Supreme Court's response to the Madras government's arguments based on Article 46 was that it was a directive principle of state policy that was unenforceable by a court. This principle could not override fundamental rights such as Article 29, because the directive principles 'had to conform to and run as subsidiary to the chapter of fundamental rights'.[19] If the government's argument based on Article 46 was correct, a special provision authorizing reservations, such as Article 16(4), would have been unnecessary to include in the Constitution. The Communal G.O. therefore discriminated on the basis of religion, race and caste and violated the government's obligation under Article 29(2). Since the court arrived at its